

8. S-PR-0013389 In Re the Estate of Gossell, Stevan M.

Petition for final distribution is recommended for approval as prayed.

9. S-PR-0013390 In Re the Astleford Rev Liv Trust

Appearance is required for continued hearing on petition to determine trust terms and for other relief.

Current status is needed.

10. S-PR-0013396 In Re the Estate of Giannulias, Demetrios A.

Appearance is required for hearing on 2d amended petition for final distribution.

Court determination is needed as to the sufficiency of service of notice of hearing. Petitioner alleges that devisee Demitra Economou "has been unresponsive" and cannot be located, suggesting petitioner believes she does not have a good mailing address for Demitra. Missing C.R.C. 7.52 declaration of efforts to locate Demitra.

If notice issues are resolved to the court's satisfaction, it is recommended the petition be denied, as follows.

Petitioner inventoried the entirety of a certain real property to the estate. However, petitioner attached a deed to her declaration filed September 3, 2025, showing record title of said property is held by petitioner and decedent as tenants in common. Legal title is presumed to be as stated in the deed unless petitioner can overcome the presumption by clear and convincing evidence. Evid.C. § 662. No such evidence is offered, requiring that only an undivided 1/2 interest to be inventoried to the estate. Petitioner appears to further argue that the property should not be considered an estate asset because she did not intend to convey a property interest to decedent when the October 2004 deed was executed and recorded. No petition to determine title to the property has been filed. See Prob.C. § 850 et seq.

Alternatively, petitioner requests the court authorize distribution of the estate property to petitioner in light of purported disclaimers of interest by Andrea Giannulias and Chrisopher Economou, and that the court simply disregard the rights of Demitra Economou under decedent's will. There is no evidence of any valid disclaimer by any person, including evidence that the purported disclaimers were in writing or were timely. Prob.C. § 279. Even if there were timely disclaimers, the effect is to cause each disclaimant's share to pass as though disclaimant had predeceased. Under decedent's will, the share of a predeceased devisee passes to the devisee's issue, not to petitioner. Petitioner offers no legal grounds to disregard the testate rights of Demitra who, petitioner concedes, has not attempted to disclaim her interest in any event.

The requested distribution solely to petitioner is thus not supported legally or factually.